

		under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a). Defendant Aileen Pham did not oppose or respond to either of the instant motions and, thus, has not provided any substantial justification or pointed to any circumstances that would make the imposition of sanctions unjust. However, some of the attorney’s fees requested as sanctions are unnecessary in light of the fact that Plaintiff did not incur any attorney’s fees to review an opposition or prepare a reply. The court will reduce the amount of sanctions accordingly. Plaintiff shall give notice of this ruling.
7	Mejico vs. Newland Garden Apartments, L.P. 30-2023-01337727	<u>Motion to Quash</u> Pursuant to the Notice of Withdrawal of Motion to Quash Service of Summons and Complaint filed December 21, 2023, (ROA 35), this matter is taken OFF CALENDAR.
8	National Funding, Inc. vs. Hard Rock Exteriors LLC 30-2023-01334334	<u>Motion for Summary Judgment</u> Plaintiff National Funding, Inc.’s Motion for Summary Judgment is GRANTED. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Hard Rock Exteriors LLC dba Nu Normal as to the 1st Cause of Action of the Complaint in the amount of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Robert Bitz as to the 2nd Cause of Action of the Complaint in the sum of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law.

		Plaintiff National Funding, Inc. shall prepare a proposed judgment and serve it on Defendants Hard Rock Exteriors LLC dba Nu Normal and Robert Bitz, and submit it to the court pursuant to Rules of Court Rule 3.1590(h). The Court FINDS good cause to allow Plaintiff National Funding, Inc. 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. Defendants Hard Rock Exteriors LLC's and Robert Bitz's evidentiary objections to the Declaration of Sandra Otero are OVERRULED as to evidentiary objection numbers 1-4. Plaintiff National Funding, Inc. moves for summary judgment as to the 1st Cause of Action of the Complaint for Breach of Contract against Defendant Hard Rock Exteriors LLC dba Nu Normal (Defendant Hard Rock) and as to the 2nd Cause of Action of the Complaint for Breach of Guaranty against Defendant Robert Bitz (Defendant Bitz). <u>Standard for Summary Judgment</u> "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) On the other hand, "[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial." (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v.</i>
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		<i>Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) "In some instances . . ., 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) When the moving party has met its initial burden and the responding party fails to file an opposition or establish a triable issues of material fact, the court may grant summary judgment or summary adjudication. (<i>Tire Distributors, Inc. v. Cobrae</i> (2005) 132 Cal.App.4th 538, 543.) Summary judgment is no longer disfavored. The Supreme Court has confirmed that the purpose of the 1992 and 1993 amendments to the summary judgment statute was "'to liberalize the granting of [summary judgment] motions.'" (<i>Perry v. Bakewell Hawthorne, LLC</i> (2017) 2 Cal.5th 536, 542, quoting <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 848.) "Summary judgment is now seen as a 'particularly suitable means to test the sufficiency' of the plaintiff's or defendant's case." (<i>Ibid.</i>, quoting <i>Caldwell v. Paramount Unified School Dist.</i> (1995) 41 Cal.App.4th 189, 203.) Nonetheless, in ruling on a motion for summary judgment or summary adjudication, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the
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		opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (<i>Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>1st Cause of Action (Breach of Contract) and 2nd Cause of Action (Breach of Guaranty)</u> "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821) In addition, "[a] lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty." (<i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486.) 1. The Existence of a Contract and a Guaranty: Plaintiff presents evidence that on or about January 10, 2023, Plaintiff and Defendant Hard Rock entered into a written Business Loan Agreement, whereby Hard Rock received a \$300,000.00 loan and was required to repay the loan in 52 weekly payments of
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		\$7,961.53. (See Decl. of Sandra Otero in Supp. of Pltff.'s Mot. for Summ. Judgment (Otero Decl.), ¶ 4, Exh. 1.) Plaintiff also submitted evidence that, on the same day, Defendant Bitz entered into a guaranty by which he unconditionally guaranteed the loan to Defendant Hard Rock. (See Otero Decl., ¶ 5, Exh. 1.) 2. Plaintiff's Performance or Excuse for Nonperformance: Plaintiff showed by its evidence that it had performed all conditions and promises required under the Business Loan Agreement and guaranty, including the deposit of all monies required under the terms of the Business Loan Agreement into Defendant Hard Rock's bank account. (See Otero Decl., ¶ 9.) 3. Defendants' Breach: Plaintiff also presented evidence that Defendant Hard Rock defaulted on the Business Loan Agreement on or about February 22, 2023, and that Defendant Bitz defaulted on the guaranty, as both failed to make the required payments under the Business Loan Agreement and guaranty. (See Otero Decl., ¶¶ 6-8, Exh. 2..) 4. Resulting Damages: Plaintiff showed that it had suffered damages of \$374,191.91 as a result of Defendant Hard Rock's and Defendant Bitz's breaches. (See Otero Decl., ¶ 8, Exh. 2..) Therefore, Plaintiff has met its initial burden of making a <i>prima facie</i> showing of the non-existence of any triable issue of material fact as to the 1st and 2nd Causes of Action. The burden then shifts to Defendants to show, by reference to specific facts and substantial evidence, the existence of a triable, material issue as to a cause of action or an affirmative defense. However, Defendants do not point to any specific facts nor do they provide any substantial evidence to show that there is a triable, material issue as to the 1st or 2nd Causes of Action.
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		<u>Objections</u> Instead, Defendants rely on their objections to Paragraphs 4-6 and 8, as well as Exhibits 1 and 2, of the Declaration of Sandra Otero and argue that the declaration should be disregarded. Specifically, Defendants assert objections on the basis of: (1) lack of foundation, (Evid. Code, § 403), (2) best evidence rule, (Evid. Code, § 1523, subd. (a)), (3) hearsay, (Evid. Code, § 1200), and (4) "conclusory". In her declaration, Ms. Otero states that she is the Chief Credit Officer for Plaintiff and has "full access to and am one of the custodians of records kept by [Plaintiff]." (Otero Decl., ¶ 2.) In addition, the Business Loan Agreement and guaranty were signed by Ms. Otero on Plaintiff's behalf. (See Otero Decl., Exh. 1 at p. 11.) This directly contradicts Defendants' argument, in support of their objections, that Ms. Otero "was not present at the loan signing". Ms. Otero therefore has the proper foundation to testify about the Business Loan Agreement and guaranty, Defendants' default, and Defendants' payment history and Plaintiff's damages. The court overrules the lack of foundation objection. The best evidence rule states that "oral testimony is not admissible to prove the content of a writing." (Evid. Code, § 1523, subd. (a).) However, Ms. Otero's testimony is not being used to prove the content of a writing, but to lay a foundation for the writing. The writings in question in this case – the Business Loan Agreement, the guaranty, and Defendants' payment history – are, in fact, attached to Ms. Otero's declaration. The court overrules the best evidence rule objection. Although hearsay generally is inadmissible, this does not apply to business records that meet the requirements of Evidence Code section 1271. These requirements are: (a) The writing was made in the regular course of a business; (b) The writing was made at or near the time of the act, condition, or event;
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		(c) The custodian or other qualified witness testifies to its identity and the mode of its preparation; and (d) The sources of information and method and time of preparation were such as to indicate its trustworthiness. (Evid. Code, § 1271.) Ms. Otero’s declaration shows that each of these requirements is met. (See Otero Decl., ¶¶ 2-3; see also <i>Wicks v. Antelope Valley Healthcare District</i> (2020) 49 Cal.App.5th 866, 876 [declaration by custodian of records sufficient to establish business records described in Evidence Code section 1271]; <i>Thompson v. Machado</i> (1947) 78 Cal.App.2d 870, 873 [under the business records exception to the hearsay rule, “it is not necessary that the person making the entry have personal knowledge of the transaction”].) The court overrules the hearsay objection on the basis of the business records exception. (fn.1) (fn.1) Evidence Code section 1271 also creates an exception to the best evidence rule. (See <i>People v. Hernandez</i> (1997) 55 Cal.App.4th 225, 239-240 [data may be properly admitted as business record, such that the best evidence rule will not foreclose the admission of said data].) Defendants also argues that Ms. Otero makes “the conclusory statements that Borrower entered into the agreement and that Exhibit 1 is a true and correct copy” and “the conclusory statements that Guarantor ‘unconditionally agreed to guaranty in writing all the obligations and duties of Borrower under the Loan Agreement’ and that Exhibit 1 is a true and correct copy.” However, as stated above, Ms. Otero’s positions and access to the records, as well as the fact that she signed the Business Loan Agreement and guaranty on behalf of Plaintiff, ensure that the proper foundation has been laid. These are not conclusory statements but the testimony of someone with personal knowledge of the facts. Defendants object to Exhibit 2 on the ground that the document “is not dated, has a bare minimum of identifying information, and appears to have been created only for the purposes of this litigation.”
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		However, Exhibit 2 is admissible as a business record and Ms. Otero has attested it is a true and correct copy of the borrower's loan payment history, which catalogs the borrower's completed and outstanding payments under the loan agreement. (See Otero Decl., ¶ 8.) None of the alleged deficiencies in the document change the fact that it is admissible. Further, Defendants have provided no evidence to support the assertion that the document was "created only for the purposes of this litigation." In their Opposition, Defendants cite to cases from federal 3rd Circuit and 11th Circuit for the proposition that Ms. Otero's declaration does not satisfy the personal knowledge requirement, and to cases from the 1st Circuit and 10th Circuit to support their contention that Ms. Otero's declaration does not lay out admissible evidence. However, federal procedural and evidentiary rules do not apply in state courts, and such rules cannot make inadmissible evidence that is admissible under the statutory and case law of this state. (See <i>Estate of Murphy</i> (1979) 92 Cal.App.3d 413, 426.) Plaintiff has met its initial burden on summary judgment and Defendants have failed to establish any triable issues of material fact as to the 1st or 2nd Causes of Action. The court therefore will grant summary judgment. Plaintiff shall give notice of this ruling.
9	Phillips vs. Nesbit 30-2022-01284894	<u>Motion for Leave to Amend</u> Plaintiffs Thomas Phillips'; Fashion Island Surgery Center, LLC's; and Thomas J. Phillips, M.D.'s Motion for Leave to File Fourth Amended Complaint is GRANTED. Plaintiffs Thomas Phillips; Fashion Island Surgery Center, LLC; and Thomas J. Phillips, M.D. shall file and serve the Fourth Amended Complaint by March 8, 2024. Defendant Alan Nesbit is GRANTED leave to file a demurrer and/or a motion to strike with respect to the Fourth Amended Complaint using the same